

PART 2

ARRANGEMENTS TO MODIFY THE OFFICE OF LORD CHANCELLOR

*Qualifications for office of Lord Chancellor***2 Lord Chancellor to be qualified by experience**

- (1) A person may not be recommended for appointment as Lord Chancellor unless he appears to the Prime Minister to be qualified by experience.
- (2) The Prime Minister may take into account any of these –
 - (a) experience as a Minister of the Crown;
 - (b) experience as a member of either House of Parliament;
 - (c) experience as a qualifying practitioner;
 - (d) experience as a teacher of law in a university;
 - (e) other experience that the Prime Minister considers relevant.
- (3) In this section “qualifying practitioner” means any of these –
 - (a) a person who has a Senior Courts qualification, within the meaning of section 71 of the Courts and Legal Services Act 1990 (c. 41);
 - (b) an advocate in Scotland or a solicitor entitled to appear in the Court of Session and the High Court of Justiciary;
 - (c) a member of the Bar of Northern Ireland or a solicitor of the Court of Judicature of Northern Ireland.

*Continued judicial independence***3 Guarantee of continued judicial independence**

- (1) The Lord Chancellor, other Ministers of the Crown and all with responsibility for matters relating to the judiciary or otherwise to the administration of justice must uphold the continued independence of the judiciary.
- (2) Subsection (1) does not impose any duty which it would be within the legislative competence of the Scottish Parliament to impose.
- (3) A person is not subject to the duty imposed by subsection (1) if he is subject to the duty imposed by section 1(1) of the Justice (Northern Ireland) Act 2002 (c. 26).
- (4) The following particular duties are imposed for the purpose of upholding that independence.
- (5) The Lord Chancellor and other Ministers of the Crown must not seek to influence particular judicial decisions through any special access to the judiciary.
- (6) The Lord Chancellor must have regard to –
 - (a) the need to defend that independence;
 - (b) the need for the judiciary to have the support necessary to enable them to exercise their functions;